



CHAPTER cxlv.

An Act to authorise the Great Central Railway Company A.D. 1905.
to establish a pension fund and guarantee pensions for
the benefit of their salaried officers and clerks to alter
modify and repeal certain provisions of the Acts relating
to the Railway Clearing System Superannuation Fund
Corporation and for other purposes. [4th August 1905.]

WHEREAS it is expedient and will be to the mutual
advantage both of the Great Central Railway Company
(hereinafter referred to as "the Company") and of the salaried
officers and clerks employed by them that provision should be
made in the manner hereinafter set forth for the payment of
superannuation and other retiring allowances to salaried officers
and clerks of the Company:

And whereas under the provisions of the Railway Clearing
System Superannuation Fund Association Act 1873 (hereinafter
referred to as "the Act of 1873") the Company are and have
been since the year one thousand eight hundred and seventy-
four subscribers to the Railway Clearing System Superannuation
Fund (hereinafter referred to as "the Clearing House Fund")
by that Act established upon condition as provided by section 9
of the said Act of their contributing "to the fund for each
" calendar month a sum equal to two and a half per cent.
" on the amount of the salaries for such month of all their
" salaried officers and clerks who for the time being shall be
" contributing members of the fund and also a further sum
" equal to any additional subscriptions which any of their
" salaried officers and clerks shall pay to the fund for such
" month beyond two and a half per cent. on their respective

A.D. 1905. — “ salaries under any provisions from time to time contained
“ in the rules relating to additional subscriptions to be paid
“ by members in consideration of time being added to their
“ membership in respect of their past services with any railway
“ company for the time being a party to the clearing system ”
or with any joint committee subscribing to the fund and also
upon condition as by section 7 of the Act of 1873 provided “ of
“ the Company permitting their then present salaried officers
“ and clerks and requiring their future salaried officers and
“ clerks to become contributing members of the fund ” subject
to the rules for the time being of the said association and
subject to such provision as may be thereby made for the
Company ceasing to be subscribers to the fund or making
default in payment of their subscriptions or the contributions
of their salaried officers and clerks who shall be contributing
members :

And whereas by section 6 of the supplemental rules of the
said association it is provided that in case any railway company
“ shall cease to be subscribers to the fund or make default
“ in payment of their subscriptions or those of their salaried
“ officers and clerks their salaried officers and clerks (unless
“ they shall enter the service of some other subscribing railway
“ company or joint committee) shall thereupon cease to be
“ contributing members of the association or fund and the
“ contributions of such salaried officers and clerks * *
“ * * with four pounds per cent. simple interest on the
“ same from the dates of payment until repayment shall be paid
“ to them respectively and they shall cease to have any further
“ claim upon the fund and the railway company shall not be
“ entitled to repayment of any amounts subscribed by them ” :

And whereas the Act of 1873 was amended by the Railway
Clearing System Superannuation Fund Association Act 1884 and
by the Railway Clearing System Superannuation Fund Incor-
poration Act 1897 (hereinafter respectively referred to as “the
Act of 1884” and “the Act of 1897”) and by the Act of 1897
the several persons from time to time members of the Railway
Clearing House and of the committee appointed under the Act
of 1873 respectively and the salaried officers and clerks con-
tributing to the Clearing House Fund were incorporated by the
name of “The Railway Clearing System Superannuation Fund
Corporation” (hereinafter referred to as “the corporation”)

and by section 4 of the Act of 1897 all the property moneys stocks funds and securities and all other rights duties chattels and personal estate whatsoever theretofore vested in or held by or under the control of the trustees of the Clearing House Fund or to which they were in any wise entitled as such trustees were transferred to and vested in the corporation to the same extent and for the like estates and interests and for the same purposes as the same were at the passing of the Act of 1897 vested in or held by or under the control of the said trustees:

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And whereas by reason of the extension of the Company's system to London and other important places the number of their salaried officers and clerks contributing to the Clearing House Fund has so very greatly increased and their general conditions of employment have become so greatly modified that it is expedient that a separate pension fund should be established for the benefit of the Company's salaried officers and clerks:

And whereas in these circumstances it is expedient that as from the thirtieth day of September one thousand nine hundred and five (in this Act referred to as "the date of separation") the salaried officers and clerks of the Company who have entered or may in future enter the employment of the Company should be exempt and freed from liability to become contributors to the Clearing House Fund and that the Company should be freed and relieved from the obligation of requiring their salaried officers and clerks to become contributors to the Clearing House Fund:

And whereas it is also expedient that provision should be made as from the date of separation for enabling the Company and such of their salaried officers and clerks as are contributing members of the Clearing House Fund to withdraw from the corporation in accordance with the provisions of this Act and that as from the said date the Company should receive from the corporation a fair apportionment of the assets of the Clearing House Fund and take over all liabilities of the corporation to such salaried officers and clerks and also to all persons who were in the service of the Company at the date of their superannuation and who are at the date of separation actually in receipt of superannuation allowance from the Clearing House Fund and that the corporation should be freed and relieved from all obligations in respect thereof:

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A.D. 1905. — And whereas the objects aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title. **1.** This Act may be cited as the Great Central Railway (Pension Fund) Act 1905.

Interpretation.

2. In this Act the expressions—

“ The Act of 1873 ” means the Railway Clearing System Superannuation Fund Association Act 1873 ;

“ The Act of 1884 ” means the Railway Clearing System Superannuation Fund Association Act 1884 ;

“ The Act of 1897 ” means the Railway Clearing System Superannuation Fund Incorporation Act 1897 ;

“ The Company ” means the Great Central Railway Company ;

“ The corporation ” means the Railway Clearing System Superannuation Fund Corporation ;

“ The Clearing House Fund ” means the fund of the corporation ;

“ The pension fund ” means the Great Central Railway Pension Fund established under the authority of this Act ;

“ The committee ” means the Great Central Railway Pension Fund Committee constituted by this Act ;

“ The date of separation ” and “ the date of establishment ” mean respectively the thirtieth day of September one thousand nine hundred and five ;

“ The pension fund rules ” means the rules of the pension fund as set forth in the schedule to this Act.

Company may establish pension fund.

3. The Company shall as from the date of separation establish a pension fund (hereinafter called “ the pension fund ”) for the payment of pensions or other allowances or payments on death superannuation resignation retirement discharge or otherwise to the salaried officers and clerks employed by the Company in carrying on their own undertaking and the salaried

officers and clerks employed by the Company or any other company or committee in carrying on any undertaking owned managed or worked by the Company jointly with such other company or committee and the widows orphans or representatives of such salaried officers and clerks The pension fund shall subject to the pension fund rules be open to all the salaried officers and clerks of the Company or such other company or committee as aforesaid whether in their service at the passing of this Act or thereafter. A.D. 1905.

4. The management of the pension fund and the scale of pensions or other allowances payable under this Act shall be regulated by the pension fund rules and after the date of establishment the pension fund rules shall be binding upon the Company and all salaried officers and clerks from time to time employed by the Company. Rules for pension fund.

5. A committee to be known as "the Great Central Railway Pension Fund Committee" is as from the date of establishment hereby constituted for the purpose of administering the affairs of the pension fund and shall consist of the following eight persons (namely):— Pension fund committee.

One director and three of the principal officers of the Company to be nominated by the directors of the Company;

Four persons elected by the members of the pension fund in accordance with the rules.

The committee shall regulate their proceedings in accordance with the pension fund rules.

6. The Company and such of their salaried officers and clerks as are contributing members of the Clearing House Fund shall upon the date of separation withdraw from the Corporation upon the terms and conditions hereinafter set forth (that is to say):— Terms of separation of Company from Clearing House Fund.

- (1) The investments and other assets of the Corporation as valued at the date of separation shall be apportioned between the Company and the corporation in the ratio of two hundred and twenty-two thousand six hundred and thirty-seven to the Company and one million three hundred and seventy-two thousand

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three hundred and ninety-two to the corporation who shall also be entitled to retain ten per centum of the proportion payable to the Company:

- (2) The value of the investments at the date of separation shall be taken to be the market selling value of the investments of the corporation at that date:
- (3) The proportion of the investments and other assets payable to the Company shall be paid to the Company within six months after the date of separation with interest thereon as from the date of separation to the date of payment at the rate of three per centum per annum. Provided that interest on any moneys forming part of the said proportion payable by the Company to the corporation under the rules of the corporation shall not begin to accrue until the said moneys have been paid by the Company to the corporation:
- (4) If any difference shall arise between the Company and the corporation as to the amount of the investments and other assets due to the Company under this section the question in difference shall be referred to and determined by some person to be agreed upon between the Company and the corporation or failing agreement to be appointed by the Board of Trade on the application of the corporation or the Company:
- (5) Upon such payment all liability of the corporation to the Company and to their salaried officers and clerks and to all persons who were in the service of the Company at the date of their superannuation and who are at the date of separation actually in receipt of superannuation allowance from the Clearing House Fund and their respective representatives shall as from the date of separation cease and determine.

Benefits of
Clearing
House Fund
guaranteed
by Com-
pany.

7. In consideration of the payment to the Company of the sum payable by the corporation under this Act the Company shall as from the date of separation—

- (A) Pay to all persons who were in the service of the Company at the date of their superannuation and who are at the date of separation actually in receipt of superannuation allowance from the Clearing House

Fund allowances and other benefits equal to those which they are or would have been entitled to receive according to the scale of benefits in force in the Clearing House Fund on the thirty-first day of October one thousand nine hundred and four; and

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- (B) Admit as members of the pension fund those of the Company's salaried officers and clerks who at the date of separation are members of the Clearing House Fund.

8. Forthwith upon receipt by the Company of the sum payable to the Company by the corporation under this Act the Company shall invest in the names of the pension fund trustees to be appointed under the pension fund rules in such securities as shall be directed by the said trustees the amount of the contributions (other than the additional contributions paid under Rule 7A of the rules of the Clearing House Fund) of the salaried officers and clerks in the service of the Company at the date of separation except so much thereof as the committee may deem necessary to meet the payments for the next succeeding twelve months to the Company out of the pension fund under this Act.

Officers' share of Clearing House Fund to be invested.

9. The committee shall receive through the Company all contributions payable by the members of the pension fund under the pension fund rules and shall pay the same into the pension fund.

Members' contributions to be paid into pension fund.

10. The Company shall pay to the members of the pension fund as part of the working expenses of the undertaking of the Company the pensions and other allowances to which the members of the pension fund shall be entitled under the pension fund rules.

Company to pay pensions as part of working expenses.

11. As and when any pension or other allowance shall mature or become payable to any member of the pension fund or as and when any member shall forfeit his right to a pension or other allowance the committee or the pension fund trustees shall pay to the Company the total amount of the contributions credited to such member in the fund.

Payments out of pension fund in aid of pensions.

12. The directors of the Company may if they think fit appropriate and set aside in each half year out of the revenues of the Company as a working expense of the Company's under-

Company may set aside moneys to meet

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future liabilities for be required to provide a fund to meet the future liabilities of
pensions. the Company for the payment of pensions and other allowances
under this Act.

Act not to restrict Com- **13.** Nothing in this Act shall affect or take away the
pany in pay- right or power of the Company to grant out of their own funds
ing pensions or revenues pensions and allowances during old age or sickness
&c. to any of the officers clerks and servants of the Company as
the directors may from time to time think fit.

Cancelling of condition that future servants of Company shall contribute to Clearing House Fund. **14.** Notwithstanding the provisions of section 7 of the Act of 1873 and of the rules of the corporation such of the Company's present or future salaried officers and clerks as have not at the date of separation become contributors to the Clearing House Fund shall not be required to become members thereof.

Contributions to Clearing House Fund to cease. **15.** Notwithstanding anything contained in the Acts of 1873 1884 and 1897 and the rules of the corporation the liability of the salaried officers and clerks of the Company to contribute to the Clearing House Fund and of the Company to make any contribution to the Clearing House Fund shall cease and determine on the date of separation.

Provision as to general Railway Acts. **16.** Nothing in this Act shall exempt the Company from the provisions of any general Act relating to railways or the better or more impartial audit of the accounts of railway companies passed before or after the commencement of this Act.

As to expenses of Act. **17.** All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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The SCHEDULE referred to in the foregoing Act. A.D. 1905.

RULES OF THE PENSION FUND.

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Interpretation
of terms.

1. In these rules the following words and expressions have the following meanings respectively unless there be something in the subject or context repugnant to such construction :—

The expression “the Company” means the Great Central Railway Company :

The expression “the Act” means the Great Central Railway (Pension Fund) Act 1905 :

The expression “the fund” means the pension fund intended to be established under the Act and all moneys stocks funds securities and investments part of or belonging or due to such pension fund :

The expression “the committee” means the committee of management of the fund appointed under the Act :

The expressions “the Clearing House Fund” and “the corporation” have the same meanings respectively as in the Act :

The expression “the date of establishment” means the date on which the fund is to be deemed to be established as provided by the Act :

The expression “contributing member of the Clearing House Fund” means and includes every person who on the date of establishment shall be a contributing member of that fund :

The expression “the service” means the service of the Company in the capacity of a salaried officer or clerk :

The expression “salaried officers and clerks” means and includes all officers and clerks and other servants in the service engaged by the month or longer in contradistinction to those engaged by the week :

The expression “salary” means the total fixed yearly remuneration which a contributing member to the fund shall regularly receive for his services whilst in the service whether as money wages or other allowances such as house rent :

The expression “these rules” means the rules herein contained.

Qualification
for member-
ship.

2. The following shall be qualified to be contributing members of the fund :—

(A) Every contributing member of the Clearing House Fund who on the date of establishment shall be in the service :

(B) Every person other than a contributing member of the Clearing House Fund who at the date of establishment shall be in the service or who on or after that date shall join the service whether by admission or by transfer from the weekly wage class to the salaried class and who at the date of establishment or of such admission or transfer as the case may be (hereinafter called “the date of entry”) shall be under the age of forty years :

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(c) With the consent of the Company every salaried officer or clerk transferred in that capacity from the service of the Company to the service of any other company or committee carrying on any undertaking owned managed or worked by the Company jointly with such other company or committee so long as he continues in any such service as a salaried officer or clerk. A.D. 1905.

3.—(1) Every person qualified under sub-clauses (A) and (B) of Rule 2 shall on so becoming qualified forthwith become a contributing member of the fund and shall so continue so long as he remains in the service except while in receipt of superannuation allowance. Commence-
ment and
duration of
membership.

(2) Every person qualified under sub-clause (C) of Rule 2 who is not a contributing member to any other pension or superannuation fund and is not in receipt of superannuation allowance shall so long as he remains in any of the services mentioned in the said sub-clause (C) be bound at the request of the Company to become a contributing member of the fund and be liable to the like contributions to the fund as if he were in the service.

4. Contributing members of the fund who were contributing members of the Clearing House Fund are hereinafter where distinctively referred to called "old members" All other contributing members of the fund are hereinafter where distinctively referred to called "new members" The expression "members" wherever hereinafter used includes both old members and new members. Definition
of "old mem-
bers" "new
members" and
"members."

5.—(1) Every old member or his representatives shall be entitled at his option either (A) to receive the like benefits whether by way of superannuation allowance repayment of contributions or otherwise and in the like events and on the like terms and conditions mutatis mutandis as he or they would have been entitled to receive from the Clearing House Fund under the rules of that fund on the scale in force on the thirty-first day of October one thousand nine hundred and four if he had continued a contributing member of that fund and such contributions and also the corresponding contributions of the Company payable under those rules had been paid to that fund except so far as such benefits are by these rules extended in favour of the old members or (B) to receive the like benefits and in the like events and on the like terms and conditions mutatis mutandis as he or they would have been entitled to receive under these rules if he were a new member and the fund had been in existence and he had become a new member at the date when he became a member of the Clearing House Fund and all his contributions and the Company's corresponding contributions on his behalf to the Clearing House Fund had been paid to the fund. Benefits to be
received by
and contribu-
tions of old
members.

(2) Such option shall be declared in writing signed by the old member and delivered to the committee by him within three calendar months from the date of establishment and shall date back to the date of establishment Option to be
declared by
old members.

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A.D. 1905. — and failing such declaration he shall be deemed to have elected that he or his representatives shall receive the benefits specified in alternative (B) above.

Contributions by old members under scale of Clearing House Fund.

(3) Every old member who shall elect that he or his representatives shall receive the benefits specified in alternative (A) above shall so long as he continues a contributing member pay to the fund the like contributions as under the rules of the Clearing House Fund in force on the thirty-first day of October one thousand nine hundred and four he would have been liable to contribute to the Clearing House Fund if he had continued a contributing member thereof.

Old members electing to become new members.

(4) Every old member who or whose representative shall by his election or for default of such election be entitled to receive the benefits specified in alternative (B) above shall so long as he continues a contributing member pay to the fund the same contributions as if he were a new member and such old member shall thenceforth be considered a new member and these rules shall thenceforth apply to him as a new member.

Contributions of new members.

6. Every new member shall so long as he continues a contributing member pay to the fund a sum equal to $2\frac{1}{2}$ per cent. upon his salary for the time being.

Member's salary reduced.

7. If the salary of any member shall be at any time reduced he shall be entitled to continue his contributions to the fund based on his salary as unreduced and shall be entitled to receive benefits from the fund on the like basis.

Method of paying contributions.

8. All moneys payable to the fund by any contributing member shall from time to time be deducted either monthly from his salary or at the option of the Company as and when his salary shall be paid to him and shall be forthwith paid over to the committee.

Admission of persons over forty years of age.

9. Any person who at the date of entry or on ceasing to contribute to some other pension or superannuation fund shall be forty years of age or upwards but in other respects qualified as mentioned in sub-clause (B) of Rule 2 may at any time within six months after becoming qualified and if under the age of sixty years apply in writing to the Company to be admitted a member of the fund and the Company may admit such person to be a new member of the fund upon making such payment or payments to the fund and upon such terms and conditions as may be agreed upon between the Company and such person.

Superannuation allowances. New members.

10. Every new member who shall retire from the service after attaining the age of sixty years shall be entitled by way of superannuation to an annual allowance for the remainder of his life based on a percentage of the average salary of such new member upon which contributions may have been paid by such member in accordance with the following table provided that the allowance shall in no case be less than 30% per annum. In arriving at an average salary 60% per annum shall be reckoned as the minimum salary received.

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TABLE.

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Years of Member- ship.	Super- annuation in percentage of average Salary.	Years of Member- ship.	Super- annuation in percentage of average Salary.	Years of Member- ship.	Super- annuation in percentage of average Salary.	Years of Member- ship.	Super- annuation in percentage of average Salary.
10	25	19	43	28	65	37	87½
11	27	20	45	29	67½	38	90
12	29	21	47½	30	70	39	92½
13	31	22	50	31	72½	40	95
14	33	23	52½	32	75	41	97½
15	35	24	55	33	77½	42	100
16	37	25	57½	34	80	43	102½
17	39	26	60	35	82½	44	105
18	41	27	62½	36	85	45	108

11.—(1) In the event of a member dying before being in receipt of a superannuation allowance his legal personal representative or representatives shall be entitled to a sum equal to five per cent. upon the salary of such member during the period (including added years if any) he was a contributing member of the Clearing House Fund or the fund and the amount of such member's additional contributions (if any) under Rule 7A of the rules of the Clearing House Fund to the fund.

Death of mem-
ber before
superannua-
tion.

(2) In the event of a member dying after he has had granted to him a superannuation allowance but before he has received from the Company by way of such superannuation allowance a sum equal to five per cent. upon the salary of such member during the period (including added years if any) he was a contributing member of the Clearing House Fund or the fund and the amount of such member's additional contributions (if any) under Rule 7A of the rules of the Clearing House Fund to the fund then his legal personal representative or representatives shall be entitled to the difference between the amount so received by him and the amount of such of the aforesaid percentage and additional contributions.

Death of mem-
ber after
superannua-
tion.

12.—(1) A superannuation allowance shall be paid in accordance with Rule 10—

Superannua-
tion through
bodily injury
or infirmity
of body or
mind or other
circumstances
before attain-
ing sixty
years of age.

(A) To any new member at any time after the expiration of ten years from the date of his becoming a contributing member (inclusive of any added years) who although not sixty years of age shall be compelled to quit the service by reason of bodily injury or infirmity of body or mind such injury or infirmity not being the result of his own misconduct and whose disability to discharge the duties of his situation shall be certified by two duly registered medical men;

(B) To any new member who having attained fifty-five years of age but not being sixty years of age may satisfy the directors of the Company by medical or such other testimony as they may deem sufficient that he is in such a condition of health as to be no longer competent to perform the duties of his position and for whom no other suitable position can be found;

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(c) To any new member between the ages of fifty and sixty who after the expiration of thirty years in the service is removed by the directors of the Company from the service or is required by them to resign for any reason other than fraud dishonesty or intemperance on his part.

Medical
examination.

(2) The committee before granting a superannuation allowance under sub-clause (A) may require such member to be examined by any medical man whom they may appoint for the purpose and to furnish such other evidence of his disability as they may require and if they are not satisfied that the disability is of such a character as to incapacitate the new member from following his usual occupation or otherwise earning a livelihood they may in their discretion refuse to grant such new member a superannuation allowance and their decision shall be without appeal.

Disability.

(3) For the purposes of this rule "disability" shall be deemed to be such disability as according to such medical or other evidence as aforesaid (as the committee deem satisfactory) will incapacitate the new member from following his usual or any other occupation or employment for a period of two years or upwards.

Certificate of
health.

(4) In the case of a new member applying for superannuation under sub-clauses (B) or (C) the secretary of the Company shall furnish the committee with a certificate that the conditions entitling such member to superannuation under those sub-clauses respectively have been complied with.

Committee
may reduce
allowance
granted for
disability.

(5) The committee shall have full power in their absolute discretion at any time in the event of any new member to whom a superannuation allowance has been granted under sub-clause (A) of this rule re-entering the service or entering into the service of any other company or following any other employment or becoming in the judgment of the committee capable of following his usual or any other occupation or employment to rescind or reduce the amount of any superannuation allowance so granted as aforesaid and in case such member shall re-enter the service the committee shall thereupon settle what (if any) benefit the said member shall derive from his previous payments and on what terms such benefit shall be granted regard being had to the amount of his previous payments and the amount which he has received by way of superannuation.

New member
leaving the
service.

13.—(1) Any new member who for any reason other than fraud or dishonesty leaves or is removed from the service or becomes ineligible by reason of being transferred to the weekly wage class after the expiration of five years from the date of his becoming a contributing member of the fund and before he is entitled to a superannuation allowance shall be entitled to receive back out of the fund the whole of his payments to the Clearing House Fund and the fund (other than the additional contributions paid by him under Rule 7A of the Clearing House Fund to that fund) without interest but the committee may in their discretion allow any new member who shall leave or be removed from the service as aforesaid

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before the expiration of five years from such date to receive back the whole or any part of his payments to the fund without interest. A.D. 1905.

(2) Any new member who in the judgment of the committee is compelled to leave the service through accident illness or other infirmity of body or mind and before he is entitled to a superannuation allowance shall be entitled to receive back the whole of his payments to the Clearing House Fund and the fund (other than the additional contributions paid by him under Rule 7A of the Clearing House Fund to that fund) without interest and the committee may also in their discretion allow to such member such further sum not exceeding the amount of such member's payments to the fund. Return of payments to new member leaving service.

(3) A member leaving or dismissed the service having been guilty of fraud or dishonesty shall forfeit all claim to the return of any payments he may have made to the Clearing House Fund or the fund. Member dismissed from service for fraud.

14. Any member the payment of whose salary shall be stopped in consequence of ill-health shall be entitled so long as his name remains upon the books of the Company but not in any case for a longer period than twelve months to continue his membership by payment of the same amount of monthly subscription as was paid by him at the time of his salary being discontinued After such twelve months he shall be dealt with under sub-clause (2) of Rule 13 as the case may require. Membership after salary is stopped in consequence of ill-health.

15. The committee may if they think fit make special arrangements from time to time with any member who after twenty years of service shall pass from the service into the service of another railway company or some service ancillary to the Company or to another railway company for the continuation of such member as a member of the fund upon his paying double the contributions to the fund payable by such member at the time of his leaving the service and such member shall so long as he continues such contributions be deemed for the purposes of the benefits of the fund to be in the service. Continuation of membership after leaving service.

16. All superannuation allowances shall be considered as accruing from day to day and be payable either monthly or quarterly according as the superannuated member shall elect If quarterly the allowances shall be paid on the first day of February the first day of May the first day of August and the first day of November in every year or if monthly then upon the first day of each calendar month unless such days shall fall on a Sunday and then on the day following. Payment of superannuation allowance.

17. There shall be four trustees of the fund who shall either be directors of or in the service of the Company two of whom shall be appointed by the directors of the Company and two by the members in the month of October one thousand nine hundred and five and they shall be appointed in the manner provided by these rules for the election of committeemen In case any of the trustees for the time being shall die or shall be desirous of being discharged or refuse or become incapable to act or shall cease to be a director of the Company or in their service he shall cease to be a trustee of the fund and then and so often as occasion shall arise the directors of the Trustees.

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A.D. 1905. — Company or the members as the case may be shall in like manner appoint any other qualified person to be a trustee in the place of the trustee so dying or desiring to be discharged or refusing or becoming incapable to act or ceasing to be a trustee and all the property belonging to the fund shall as soon as possible be vested in the new trustee or trustees jointly with the surviving or continuing trustee or trustees or solely as the case may require.

Investment
of moneys.

18. The moneys belonging to the fund not wanted for immediate application shall be invested in the name of the trustees in such of the following ways as the trustees shall think fit (viz.) In the Public Funds or Government securities of the United Kingdom or India or any British colony or dependency or upon freehold copyhold or leasehold securities in the United Kingdom or in or upon the debentures mortgages stocks funds and shares or other legal securities of any railway company including the Company in the United Kingdom or India or any other colony or dependency of the United Kingdom or on or upon the security of any county borough or other rates authorised to be levied and mortgaged by Act of Parliament or in or upon any stock issued by any municipal corporation under the authority of any general or local Act of Parliament or on loan to the Company with power for the trustees to vary or transpose such investments into or for others of those hereinbefore authorised and the interest dividend or other annual income of all such investments shall be paid to and belong to the Company. The trustees shall from time to time sell or convert into money such part or parts of the investments standing in their names as may from time to time be required to pay the contributions of any member to the Company under the Act upon the pension or other allowance to such member maturing or becoming payable and shall pay such contributions either directly or through the committee to the Company.

Election of
committee-
men and their
auditor.

19. The election by the members of committeemen to serve upon the committee and of an auditor shall take place in the month of October in the year one thousand nine hundred and five and in the same month in every succeeding third year and the said elections shall be conducted in the following manner namely Within the first ten days of October in the year one thousand nine hundred and five and in every third year as aforesaid the names of the persons proposed for election as committeemen and of one person as auditor together with the consent in writing of such persons or person to act in such respective capacity shall be sent to the secretary of the committee signed by six at least of the members who shall have been contributing members for ten years then last past or from the date of establishment (whichever shall be the shorter period) and the secretary of the committee shall within the week commencing with the eleventh day of the said month send to every member a printed form of voting paper containing the names of the persons so proposed together with the names of the proposers of each respective candidate and all notices sent by post addressed to the member at his station or place of business as described in the register as hereinafter provided shall be considered as having been

duly sent to and received by him but no unintentional omission or mistake in sending or not sending any such notice shall invalidate any election The member may vote for such of the candidates on such voting paper not exceeding four as he pleases and also for one auditor and shall do so by striking his pen through the names of the candidates for whom he does not desire to vote and signing his name on the voting paper and returning it in an envelope to the secretary of the committee within seven days of the date of the voting paper And the secretary of the committee shall in the presence of two scrutineers count the votes given for each of the several candidates make out a list thereof and shall within seven days after the expiration of the last-mentioned seven days sign such list and declare the four persons elected who shall have received the largest number of votes as members of the committee and in like manner the auditor so elected and shall notify the same to the several persons elected And the said list of votes so taken and signed by the secretary of the committee together with the voting papers shall be handed by him to the chairman of the committee at the first meeting of the committee thereafter and in the event of any candidate or candidates having an equal number of votes the chairman for the time being of the Company shall have the casting vote No person shall be capable of being elected as a committeeman or auditor unless he be a contributing member of the fund.

A.D. 1905.

20. The persons from time to time elected as members of the committee and the person from time to time elected as auditor shall respectively continue in office until the next general election for committeemen and auditor or until their successors are elected but shall be eligible for re-election In case any elected committeeman or auditor shall at any time before the then next election for committeemen be desirous of being discharged or refuse or become incapable to act or shall be removed from his office by a vote of the committee at a meeting specially called for the purpose he shall cease to be a committeeman or auditor as the case may be and then and so often and also upon the death of any elected committeeman or auditor the vacancy so caused shall be filled up by the vote of a majority of the remaining elected committeemen at a meeting specially called for the purpose by notice sent to each such committeeman ten days at least prior to the meeting and the person so elected to fill up such vacancy shall continue in office during so long only as the person in whose place he may have been appointed would have remained The person nominated as member of the committee by the directors of the Company shall continue in office during the pleasure of the said directors who shall from time to time fill up any vacancy caused by death or otherwise.

Removal of
committee-
man or audi-
tor.

21. The committee shall meet at such times and at such place or places and subject to such regulations as in their discretion they shall from time to time make for the conduct of their business and three committeemen present in person shall be a quorum and the committee shall from time to time elect a fit and proper person to be secretary and until some other person is appointed the secretary of the Company shall be the secretary

Meetings of
committee.

[Ch. cxlv.] *Great Central Railway (Pension Fund)* [5 EDW. 7.]
Act, 1905.

A.D. 1905. of the committee and the committee shall have full power at any time to remove any secretary and to appoint another person in his stead and the Company shall assign to every secretary and auditor such salary as the Company in their discretion shall think fit.

Meetings of members.

22. A general meeting of the members shall be held annually on the first Monday in November or on any other day in that month which the committee may substitute. At such meetings a shorthand writer shall be employed to report the proceedings in order to enable the secretary (if so instructed by resolution at such meetings) to transmit to every member within a month of the holding of such meetings a full report of the business done. Every member present personally or by proxy shall have a vote at the general meetings. Twenty-one clear days' notice of all meetings shall be given by the secretary and no general meeting shall enter upon any business not set forth in the notice upon which it shall have been convened neither shall any subject be brought before any meeting for discussion without the secretary having been apprised twenty-eight days before the meeting. All meetings may be adjourned.

Trustees' and committee's indemnity.

23. The trustees and also the committee respectively shall be chargeable only for their own acts and defaults respectively and not for the acts or defaults of the others or other of them or any other person or persons.

Duties of secretary.

24. The secretary shall keep the accounts records books and papers relating to the fund and business thereof he shall receive and report to the committee all applications for allowances from members of the fund resignations and other matters he shall summon all meetings he shall keep a faithful record of all the business and transactions of the committee and perform all such other duties with reference to carrying out the business as the committee shall from time to time appoint. He shall keep a full and true record of the times of commencement of membership of the dates of the several contributions and of all other facts necessary or proper to be recorded and also a correct register of all contributing members and members in receipt of allowances.

Register of members.

Appointment of directors' auditor.

25. The directors of the Company may from time to time appoint a fit and proper person to be an auditor to act jointly with the auditor elected by the members and may from time to time at their discretion remove any person so appointed and upon any such auditor dying resigning or being removed the directors may appoint another fit person to the office.

Accounts of the fund.

26. The committee shall cause full and true accounts to be kept of the fund and of all sums of money received and expended and of the matters and things for which such sums of money shall have been disbursed they shall cause the books of accounts to be balanced up to the thirtieth day of September in every year and an exact balance sheet to be made up which shall exhibit a true statement of the fund and the debts if any due payable thereout at the date of making such balance sheet they shall deliver to the auditors within thirty days thereafter the balance sheet prepared as aforesaid together with all the books vouchers receipts and means of vouching

[5 EDW. 7.] *Great Central Railway (Pension Fund)* [Ch. cxlv.]
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and verifying the same and the committee and secretary shall give the auditors every assistance in their investigation that they may require and give them access to all papers books and documents belonging to them or appertaining to the fund and the accounts so audited by the auditors and certified by them to be correct shall in all respects and for all purposes be conclusive evidence of the correctness of the said accounts and every member of the fund shall be entitled at all reasonable times during fourteen days immediately preceding the annual meeting in every year upon application to the secretary to inspect the accounts and balance sheet.

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27. The committee shall decide on all claims made under these rules and whenever it shall be needful for the committee to decide a question of fact they shall be at liberty to act upon such proofs or presumptions as they shall deem satisfactory whether the same shall be strictly legal proofs or legal presumptions or not.

Adjudication
of claims.

28. Any claim for an annuity to which a member is entitled may at the request of such member be commuted by the Company at their discretion by a single payment and thereupon such member shall cease to have any claim on the Company or the fund.

Commutation
of annuities.

29. If any dispute shall arise between any member or person claiming under or on account of any member or under these rules and the committee or between members of the committee except in respect of any matter left in the decision or discretion of the committee and decided by a majority of the committee the matter in dispute shall be referred in writing to some person not being directly or indirectly personally interested in the fund to be named at the instance of either disputant by the Board of Trade and the decision of such person shall be final and conclusive.

Settlement of
disputes.

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